RULES OF PROCEDURE FOR THE ICJ

Structure of the International Court of Justice

Applicant: The party who chooses to file an application before the International Court of Justice to institute a case between itself and another nation in order to settle a dispute.

Respondent: The respondent party is responsible for defending itself from the claim of the applicant party. It should be noted that a party need not necessarily constitute only one nation – in the case of a special mutual agreement between two states, a party can constitute more than one nation.

Panel: This is constituted of the presidents, who oversee and moderate court proceedings, and judges, who deliberate upon the evidence and legal arguments presented to them and arrive at a verdict.

Modes of Address

Although the International Court of Justice does not require the usage of third-person pronouns when referring to oneself, there is a requisite degree of formality required when addressing other members of the Court. Judges are to be addressed by advocates as "Your Honor", while the presidents are to be referred to as "Mr President" or "President" by all members of the Court. When addressing specific advocates of either party, the phrasing "Advocate" or "Counsel" is mandatory, although when referring to a specific party, usage of the specific country name or the words "Applicants/Respondents" is necessary. While no direct conversation between parties will be permitted when court

While no direct conversation between parties will be permitted when court is in session, any questions or objections may be raised to the President or the Deputy Presidents. Any witness appearing before the court is to be solely addressed by their appropriate title and surname, while witnesses themselves may use first-person modes of address.

Documents

- **Stipulations:** A written set of established facts on the basis of which the arguments shall be framed. This will be provided by the President (given below), and any further additions of facts/evidences shall be given in the Evidence Packet.
- **Evidence Packet**: An evidence packet is essentially a compilation of all the evidence the advocacy plans to use to support its legal arguments. In the form of a document containing all the pieces of evidence, the evidence packet must contain a table contents and must have every page numbered. Each piece of evidence must then have the following citations:
    - Title
    - Author
    - Medium (Website/Book/etc.)
    - Date

- **Memorial (Prepared in accordance with Art. 49 of the Statute)**
  At the start of the Hearing, both the parties will present a Memorial to the Judges and the President. This shall consist of interpretation of the FACTS that originated the dispute; a brief explanation of the LAW involved, and ARGUMENTS on the legal issues; concluding with a PRAYER FOR RELIEF, which is a list of the petitions made to the court.
  • Both parties must present a brief overview of the Memorial in their Opening Statement. The full Memorial should be submitted to the President on the first day of proceedings.
  • The case is considered open once the Applicant delivers its Memorial in the Opening Statement

Opening Speeches

Opening speeches will be a combined speech by both advocates for a country consisting of the general arguments of each party and the response of the country to the claims of the opposing party, while also touching upon the stipulations and their role in the case. Opening speeches will have a 15-minute time limit and the applicant party will start with their speeches, followed by the respondent party.

Presentation of Evidence

The aim of presentation of evidence is largely to ensure that each member of the court is familiar with the evidence provided by both parties. The party presenting the evidence packet will start by stating the title, author, medium and date of the piece of evidence followed by a brief description of the significance of the piece of evidence in question.

The opposing party can then agree with the piece of evidence or can object to it on one or more of the following grounds:

- Authenticity
- Undue bias
- Relevance
- Reliability
- Accuracy

These objections will be noted and taken into account during deliberation – however, advocates are advised to object on a particular ground only when necessary, and thus should note that excessive and invalid objections to evidence will be frowned upon.

Weighing of Evidence

Once both parties have finished presenting evidence, court will enter a closed session in which only the Presidents and the judges remain. Each judge will be allotted pieces of evidence and will be given time to further examining said pieces of evidence. Each judge will then present his or her piece of evidence before the court, briefly summarizing the evidence and it's relation to the case.

After the presentation, discussion will be opened for all judges to comment on the evidence as a whole, following which the evidence will be weighted as either high,

medium, or low, depending on the credibility, relevance, accuracy and significance of the evidence – this process will be repeated for each piece of evidence.

Witness Examination

The counterpart to documents in the field of law, witnesses add the key element of human experience to the process and their examination allows judges room to delve into the matter which is otherwise not readily available. Witness examination has three parts: direct examination, where the party that has introduced the witness questions the witness, cross examination, where the opposing party will question the witness, and judge examination, where both the judges and the Presidents will be allowed to question the witnesses. It is important to remember that only one advocate from each team can question a witness during direct or cross-examination respectively.

Choosing Witnesses

Advocacies have the freedom to use witnesses from any forum of the MUN simulation – however, in order to ensure that other committees are not unduly disturbed by the process, it is strongly recommended that the advocacies communicate the number of witnesses they will need (an upper of limit of three is imposed on each advocacy) to the President, following which the President will allocate witnesses to the advocacy.

Preparing Witnesses

It is important to remember that the witness cannot be "made-up" – the witness's identity must exist in real life, and any witnesses whose identities are found to be fraudulent in nature will not be allowed to testify. Advocates are advised to "coach" their witnesses well – witnesses should know what they will be asked on direct examination, and what answers are expected, so long as they are truthful. Witnesses should also be prepared for cross examination, where the other party will aim to create a dispute over the witness's statements and will also aim to place the witness's credibility into question.

Direct Examination

Direct examination is the examination of a witness by the party who has introduced the witness. The fundamental rule of direct examination is that leading questions cannot be asked – where leading questions are defined as questions which suggest the answer by the very nature of the question, a simple example being "You saw him, didn't you?". An exception to this rule is if the witness is an expert witness – however, if a party wishes to introduce a witness as an expert witness in a field relevant to the case, the witness will first be subject to a voir dire examination by the judges who will ask the witness several questions regarding his/her expertise in the field, such as years of practice, publications, etc. The judges will then decide whether to admit the witness as an expert or not. Another rule that is common to all types of witness examinations is that hearsay questions cannot be asked –that is to say, a witness cannot be asked about an out of court statement or act allegedly made by someone other than the witness in question. The exception to this is if the person who made the statement is also a witness – however, given the fact that advocates usually try and bring in varied perspectives through each witness, the probability of this situation is remote.

Cross Examination

Cross-examination, following direct examination, is the examination of a witness by the other party in the case. The main aim of cross-examination is to make the witness seem not credible and to create a dispute over the witness's statements. The fundamental rule in the case of cross examination is that questions must only pertain to the testimony offered by the witness during direct examination – that is to say, an advocate cannot ask the witness about events outside of those described during cross examination. However, advocates conducting cross-examination of a witness are allowed to ask leading questions –in fact, it is advised that advocates use the tool of leading questions to the fullest.

Judge Examination

After both direct and cross examination have been completed, the judges are then free to ask any questions of the witnesses in order to gather information relevant to the case – however, given time constraints, judges are advised to wisely select the most important questions as there may not always be enough time to ask every question possible. Judges are allowed to ask leading questions, but are not permitted to ask hearsay questions (as previously defined – questions which ask a witness about an out of court statement or an act allegedly made by someone other than the witness). However, it is to be noted that judges are not limited by the testimony of the witness during direct examination – indeed, they may ask any relevant question in order to establish the credibility or bias of the witness.

Objections

During direct or cross examination, the advocacy not examining the witness at the time may object to certain questions or to testimony of a witness on the following grounds:
o Hearsay
o Leading Question
o Speculation
o Irrelevance
o Badgering
o Competence

Each type of objection is discussed below – depending on the objection made, the Presidents will decide whether to accept the objection or not. If the objection is held as valid, the counsel questioning the witness will have to ask a different question or rephrase their question (in the case of objections to portions of testimony, judges will be asked not to take the portion of the testimony into consideration). However, the decision of the Presidents regarding an objection will be final, and there will be no further discussion or protest on the matter of the objection.

<u>Hearsay</u>: This objection can be raised if the advocate questioning the witness has asked a hearsay question (as defined earlier): however, if the advocates do not raise this objection, the Presidents will raise this objection themselves.

<u>Leading Question</u>: This objection can be raised if the advocate questioning the witness has asked a leading question (as defined earlier) during direct examination and if the witness is not an expert witness – however, as with hearsay objections, in the event that

the advocates do not raise this objection, the Presidents will raise this objection themselves

Speculation: If the witness attempts to predict the possible outcome of an event during his/her testimony, the advocates not questioning the witness may object to this portion of the witness's testimony.

Irrelevance: If the advocates not questioning the witness at the time feel that a portion of the witness's testimony is irrelevant to the case at hand said advocates may object to this portion of the witness's testimony.

Badgering: If the advocates not questioning the witness at the time feel that the witness is being unduly intimidated by the questions being asked to the witness at the time, they may object to such questions.

Competence: If the advocates not questioning the witness at the time feel that the witness is asserting a fact that he/she is not qualified to make, said advocates may object to the statement made by the witness.

Rebuttals

- Following the Deliberation, both parties will reply to the principal case of the opposition. There shall be no specific time limitation for rebuttal. President must make sure that both parties are treated equally.
- After each party finishes their rebuttal, the judges shall have the opportunity to question the sides. Questioning of a certain side shall immediately start after they have delivered their rebuttal.

Closing Statements

After the entire witness examination process has been completed, advocates will be given some to time to prepare, after which each advocacy will have 20 minutes to make their concluding remarks, where they should:
o Address each contention made by the opposing party
o Re-state their legal arguments and support them with the evidence introduced
o Bring up any new legal arguments if need be

Advocacies are also reminded to bring up their "prayer" at the end of their statements – the judgments that they ideally desire. If damages are involved, it is incumbent upon the advocacies to state what amount(s) they believe the Court should award, with sufficient reason to back it up.

Deliberation

Once closing statements are complete, advocacies will exit the room and court will enter a closed session known as deliberation with only the judges and the Presidents present. Judges will discuss each aspect of the case: the legal arguments presented by both parties, the evidence available and a solution to the dispute at hand.

Once the discussion is over, each judge will announce their decision on the case – the solution with the majority will be deemed as the Majority Opinion, and judges with separate views will form Dissenting Opinions based on their views.

VERDICT AND VERDICT WRITING

- Judgments indicate the substantive result of the case before the Court and outline the rights and duties of the parties to the case under international law. Opinions are explanatory memoranda, which outline the legal position of a member or members of the Court regarding the judgment reached in the case. A majority of the Court may reach a judgment and adopt one opinion addressing that judgment. A majority of the Court may reach a judgment but not agree on a single opinion, in which case, the majority of the Court must draft an opinion that reflects the opinions of the majority.
- Members of the Court disagreeing with a judgment may file dissenting opinions in which they outline their specific disagreements with the judgment.
- After the advocates have made all their written and oral submissions and the judges have deliberated over them, the judges will vote on the decision.
- After the voting the judges will write the judgment.
- The judgment, which shall state whether it is given by the Court or by a chamber, shall contain: the date on which it is read; the names of the judges participating in it; the names of the parties; the names of the agents, counsel and advocates of the parties; a summary of the proceedings; the submissions of the parties; a statement of the facts; the reasons in point of law; the operative provisions of the judgment; the decision, if any, in regard to costs; the number and names of the judges constituting the majority; a statement as to the text of the judgment which is authoritative.
- Any judge may, if he so desires, attach his/her individual opinion to the judgment, whether he dissents from the majority or not; a judge who wishes to record his/her concurrence or dissent without stating his/her reasons may do so in the form of a declaration. The same shall also apply to orders made by the Court.

STIPULATIONS (STATEMENT OF ESTABLISHED FACTS)

1. In July 1979 the Government of President Somoza collapsed following an armed opposition led by the *Frente Sandinista de Liberacibn Nacional* (FSLN) .
2. The new government – installed by FSLN – began to meet armed opposition from supporters of the former Somoza Government and ex-members of the National Guard.
3. The US – initially supportive of the new government – changed its attitude when, according to the United States, it found that Nicaragua was providing logistical support and weapons to guerrillas in El Salvador.
4. In April 1981 it terminated United States aid to Nicaragua and in September 1981, according to Nicaragua, the United States "decided to plan and undertake activities directed against Nicaragua".
5. The armed opposition to the new Government was conducted mainly by (1) *Fuerza Democratica Nicaragüense* (FDN), which operated along the border with Honduras, and (2)*Alianza Revolucionaria Democratica* (ARDE), which operated along the border with Costa Rica
6. The United States officially acknowledged its support (for example: In 1983 budgetary legislation enacted by the United States Congress made specific provision for funds to be used by United States intelligence agencies for supporting "directly or indirectly military or paramilitary operations in Nicaragua").
7. The United States did not appear before the ICJ at the merit stages, after refusing to accept the ICJ's jurisdiction to decide the case.
8. The United States at the jurisdictional phase of the hearing, however, stated that it relied on an inherent right of collective self-defence guaranteed in A. 51 of the UN Charter by "providing, upon request, proportionate and appropriate assistance…" to Costa Rica, Honduras and El Salvador in response to Nicaragua's alleged acts aggression against those countries

Further established statement of facts can be found here (pages 3-10), and both of these will be acceptable as established fact in the committee.

Witnesses to be presented by the opposing sides should be submitted to the President by December 18, 2015. A list of 5 or less potential witnesses from either sides has be to mailed at abhinav_95@hotmail.com, out of which 3 will be accepted and notified by a mail. Memorials, if made by that date, can also be sent via mail for better preparation of proceedings.